

AI, BIOPOLITICS & THE BODY IN THE DIGITAL AGE

COMPLETE ARGUMENTS DOSSIER

SUMMARY NOTES FROM THE COURSE

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ARGUMENTS

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RESISTANCE

33
TOTAL PAGES

[A-01] ARGUMENT 1: AI IS NEVER NEUTRAL – IT ENCODES EXISTING BIAS UNDER A VENEER OF OBJECTIVITY

■ THE CORE CLAIM

AI systems are marketed as objective, scientific, and progressive, but they actually reproduce and amplify existing racial, gender, and class hierarchies. The "New Jim Code" describes how technology appears neutral while automating discrimination.

■ EXAMPLES FROM READINGS

Beauty AI (Benjamin): All 44 winners across age groups except six were White; only one finalist had visibly dark skin. The algorithm was trained on biased data that privileged White features.

Obermeyer et al. (Health Algorithm): A widely used commercial health algorithm systematically underestimated the health needs of Black patients because it used healthcare costs as a proxy for need. Black patients had lower costs due to historical healthcare discrimination, so the algorithm read "lower cost" as "lower need" – even when they were actually sicker.

COMPAS Recidivism Algorithm (Benjamin): ProPublica found COMPAS was nearly twice as likely to falsely flag Black defendants as "high risk" compared to white defendants, and twice as likely to falsely flag white defendants as "low risk."

Amazon's Facial Recognition (Benjamin): The ACLU tested Amazon's Rekognition on members of Congress. The system misidentified 28 members as criminal suspects – 39% of false matches were people of color, though people of color make up only 20% of Congress.

HP Webcam (Browne): Black Desi Cryer's video showed an HP webcam that could track "white Wanda" but could not detect or follow his face. HP responded that the technology "is built on standard algorithms that measure the difference in intensity of contrast between the eyes and the upper cheek and nose" – meaning the algorithm was optimized for lighter skin.

Credit Scoring (Nopper): The FICO score was marketed as taking "prejudice out of the equation," yet it systematically disadvantages Black and brown communities who have been denied access to credit through redlining and other discriminatory practices.

[A-02] ARGUMENT 2: AI DEPENDS ON "DIRTY DATA" – HISTORICAL RACISM POLLUTES TRAINING DATA

■ THE CORE CLAIM

Predictive systems are trained on data generated by biased policing, discriminatory courts, and unequal institutions. The algorithms inherit and amplify these biases, creating feedback loops that deepen inequality.

■ EXAMPLES FROM READINGS

Chicago's Strategic Subjects List (RAND study): The SSL was built using arrest data from periods when the Chicago Police Department was under federal investigation for unconstitutional stops, racial bias, and data manipulation. The model identified less than 1% of actual homicide victims but increased arrests for shootings – not through prevention, but because police used the list as a suspect checklist after crimes occurred.

New Orleans Palantir System (Richardson et al.): The NOPD secretly contracted with Palantir for predictive analytics using data from 2005-2011, when officers targeted Black and transgender residents and fabricated evidence. The predictive outputs described perpetrators as "overwhelmingly young, African American, male" – directly mirroring the department's biased enforcement patterns.

Maricopa County (Richardson et al.): The Maricopa County Sheriff's Office was found guilty of racial profiling against Latinos. Multiple cities in the county use predictive policing and share data via regional platforms, meaning dirty MCSO data contaminated systems in neighboring jurisdictions.

PredPol's False Claims (Richardson et al.): PredPol claims to exclude drug arrests and traffic stops to avoid bias, but still uses 911 call data – which is influenced by racial bias in reporting (e.g., "shopping while Black" calls). Vendors do not independently validate police data.

The Confirmation Feedback Loop (Richardson et al.): Biased data leads police to revisit over-policed neighborhoods, generating more data from those areas, which then justifies further policing. In NYC, 311 calls for "quality of life" offenses spiked in gentrifying neighborhoods, leading to more police presence and arrests in Black and Latino areas – reinforcing the data loop.

[A-03] ARGUMENT 3: AI EXPANDS THE CARCERAL STATE UNDER THE GUISE OF REFORM

■ THE CORE CLAIM

Technologies marketed as "public safety," "decarbonization," or "efficiency" actually expand police power, deepen surveillance, and create new mechanisms of social control. "Reform" often means making the carceral system more efficient, not shrinking it.

■ EXAMPLES FROM READINGS

Promise vs. Appolition (Benjamin): Promise is Jay-Z's "decarceration" startup that uses app-based tracking and GPS monitoring as an alternative to pretrial detention. Benjamin critiques it because it charges \$17.80 per day (creating a "digital cell"), collaborates with law enforcement, extends surveillance into everyday life, and is part of the "technocorrections" industry. In contrast, Appolition is a bail crowdfunding app that actually frees people – raising \$230,000 and freeing over 65 people.

NYPD Protest Surveillance (Cagle & Hirsch): In summer 2020, the SFPD illegally accessed hundreds of private surveillance cameras to place Black Lives Matter protests under live surveillance without democratic approval. The city's facial recognition ban stopped the SFPD

from scanning faces and logging identities, but surveillance of protected First Amendment activity still occurred.

Israeli Border Technology (Dawson): Hermes drones manufactured by Israel's Elbit Systems conduct killings of civilians en masse in Gaza. The same drones were deployed at the U.S.-Mexico border (unarmed, but the technology is identical). Elbit's surveillance towers are marketed as preventing "infiltrators" in Palestine and "illegal immigrants" in the United States – both share the stated justification of preventing "terrorism."

Palantir in LAPD (Brayne): The LAPD uses Palantir, a data integration platform originally designed for national security, to merge data from police records, license plate readers, field interview cards, and non-police sources like utility bills, social media, and pizza delivery records. This blurs the line between traditional policing and intelligence-style surveillance.

Automatic License Plate Readers (Brayne): ALPRs capture data on every passing car, not just suspects. A person whose car is recorded near a crime scene can be added to a database without ever having police contact. ALPRs are deployed more in high-crime (often minority) areas, so residents there are more likely to be tracked.

[A-04] ARGUMENT 4: AI SYSTEMS LACK ACCOUNTABILITY AND TRANSPARENCY

■ THE CORE CLAIM

Algorithms are often proprietary "trade secrets," making it impossible to audit them for bias or error. When systems fail, no one is held responsible – accountability is displaced onto "the algorithm" itself.

■ EXAMPLES FROM READINGS

Houston Teacher Evaluation Algorithm (AI Litigation Report): The Houston school district refused to show teachers the algorithm evaluating them, claiming it was a trade secret owned by a third-party vendor. Teachers won a constitutional due process argument forcing disclosure.

Idaho Medicaid Algorithm (AI Litigation Report): A secret algorithm was used to cut Medicaid benefits for people with disabilities. Recipients were given no notice, explanation, or appeal. The algorithm's design specifications were considered trade secrets.

Arkansas Medicaid Algorithm (AI Litigation Report): An algorithmic system allocating home health care failed to recognize cerebral palsy and diabetes due to flawed design and coding errors. This was only discovered during litigation when experts examined the code.

D.C. Juvenile Risk Assessment (AI Litigation Report): A judge rejected a violence risk assessment tool for lacking scientific validity. The tool used factors like "parental criminality" and "community disorganization" – proxies for race – resulting in biased "high risk" scores for youth of color. The tool was based on only two outdated, non-peer-reviewed studies.

FBI Face Recognition (Garvie et al.): Maryland's face recognition system, which includes the license photos of over two million residents, was launched in 2011 and had never been audited. Only 9 of 52 agencies audit searches. The FBI hasn't audited its system either.

Drone Strike Secrecy (Crawford): The CIA has secretly conducted hundreds of drone strikes in Pakistan and Yemen. The criteria for choosing targets, procedures to protect civilians, and the actual number of civilian casualties are all concealed. The Obama administration counted all military-age males in a strike zone as combatants "unless there is explicit intelligence posthumously proving them innocent."

[A-05] ARGUMENT 5: AI ENABLES AND DISPLACES ACCOUNTABILITY FOR VIOLENCE

■ THE CORE CLAIM

Automated systems allow institutions to distance themselves from violent outcomes. When an algorithm makes a decision, no individual feels responsible – "the computer did it."

■ EXAMPLES FROM READINGS

"Drop Weapons" in Iraq and Afghanistan (Crawford): Soldiers were encouraged to carry "drop weapons" (AK-47s or shovels) so that if they accidentally killed an innocent person, they could plant the weapon to make the victim look like an insurgent. In Afghanistan, soldiers from the Fifth Stryker Brigade attacked civilians, planted weapons next to victims, and some took body parts as trophies. Staff Sergeant Hensley said: "Was it a good kill? It's a good kill because I say it's a good kill."

Automated Welfare Decisions (Benjamin): "Automated welfare decisions are not magically fairer than their human counterparts. Discrimination is displaced and accountability is outsourced."

Risk Assessment in Sentencing (Starr): EBS instruments produce higher risk estimates for poor, young, male, and minority defendants, exacerbating existing disparities. The "scientific" veneer makes discrimination appear objective.

China's Social Credit System (Benjamin): "The system not only investigates behaviour – it shapes it." Residents of Xinjiang are forced to download an app tracking "terrorist and illegal content" – targeting Muslim minorities.

[A-06] ARGUMENT 6: AI EXTRACTS VALUE FROM MARGINALIZED COMMUNITIES WITHOUT CONSENT

■ THE CORE CLAIM

Data is extracted from poor and minority communities as "raw material" for profit, while those communities receive no benefit and suffer increased surveillance and control. This mirrors historical colonialism.

■ EXAMPLES FROM READINGS

FinTech in Africa (Birhane): Microfinancing apps like Tala and Branch use smartphone data (browsing history, likes, locations) to assess creditworthiness. Rather than "lifting people out of poverty," FinTech profits from poverty. Safaricom reported \$620 million in annual profit directed to investors while leaving Kenya's poorest in perpetual debt. As Bateman says: "Like the colonial era mining operations that exploited Africa's mineral wealth, the microcredit industry in Africa essentially exists today for no other reason than to extract value from the poorest communities."

Kenya's Biometric ID System (Birhane): The national biometric ID system risks excluding racial, ethnic, and religious minorities who have historically faced challenges acquiring documentation. If implemented, these minority groups would be rendered stateless and face challenges registering a business, getting a job, or traveling.

Digital Colonialism (Kwet): U.S. tech monopolies (GAFAM) control the three core pillars of the digital ecosystem: software, hardware, and network connectivity. Facebook Free Basics offers limited, curated internet to the poor, violates net neutrality, and funnels users into Facebook's ecosystem. The NSA partners with tech corporations for mass surveillance in the Global South.

The "Scored Society" (Nopper): Marketplace lenders mine social media data (Facebook, Twitter, LinkedIn) and texting patterns to assess creditworthiness. This profiling often happens without explicit consent and can include data from before the loan application. The "scored society" makes algorithmic scoring a condition of economic survival.

[A-07] ARGUMENT 7: FACIAL RECOGNITION TECHNOLOGY IS INHERENTLY RACIST AND DANGEROUS

■ THE CORE CLAIM

Facial recognition systems misidentify people of color at dramatically higher rates than white people, and law enforcement uses them to target activists, protesters, and minority communities.

■ EXAMPLES FROM READINGS

NYPD Misidentification (Amnesty International): Facial recognition has been used 22,000 times in New York City since 2017. Black and minority communities are at risk of being misidentified and falsely arrested — in some instances, facial recognition has been 95% inaccurate.

Detroit False Arrests (Amnesty International): Examples include false arrests of Black men in Detroit, where facial recognition led to wrongful arrests.

Black Lives Matter Activist (Amnesty International): NYPD officers attempted to arrest Derrick "Dwirek" Ingram by besieging his apartment for five hours after seemingly using facial recognition to identify and locate him. A reporter caught a facial recognition query report print-out in an officer's hand with Ingram's face and name on it.

Atlantic Plaza Towers (Amnesty International): Residents of a Black-majority complex in Brooklyn successfully resisted attempts to install facial recognition cameras. In response, the landlord sent tenants full-color surveillance print-outs of them standing in the lobby

with their apartment numbers and time and date written on the photos – an act of intimidation through surveillance.

FBI Co-authored Study (Garvie et al.): FBI co-authored research suggests face recognition may be less accurate on Black people. Also, due to disproportionately high arrest rates, systems that rely on mug shot databases include a disproportionate number of African Americans.

San Francisco Ban (Cagle & Hirsch): In 2019, San Francisco passed the nation's first ban on municipal facial recognition. In 2022, Mayor Breed proposed a ballot measure to gut the law, but withdrew it after a citywide poll showed 60% of San Franciscans opposed giving SFPD access to private cameras for live surveillance.

[A-08] ARGUMENT 8: AI REINSCRIBES RACE AS A BIOLOGICAL CATEGORY

■ THE CORE CLAIM

Despite the scientific consensus that race is a social construct, genetic surveillance and biometric technologies treat race as a biological fact, re-racializing populations under the authority of science.

■ EXAMPLES FROM READINGS

CODIS DNA Database (Roberts): The FBI's national DNA database (CODIS) vastly over-represents Black people because they are overrepresented in the criminal justice system. This means Black individuals are much more likely to be connected to a crime by familial DNA matching – even for crimes they did not commit – simply because their DNA or a relative's DNA is already in the database.

Grim Sleeper Case (Roberts): California's DNA database is 40% Black (while Black people make up 6% of the state population), meaning familial DNA searching in California is inherently targeted at Black families. Every Black person with a relative who has been arrested is effectively enrolled in a genetic surveillance database without consent.

Ferguson v. City of Charleston (Roberts): A public hospital in Charleston implemented a policy of drug testing pregnant women and reporting positive results to police. Almost all women arrested under this policy were Black. The hospital was functioning as a law enforcement arm specifically targeting Black women's pregnancies.

The Shirley Card (Roth): The Shirley card – a color reference card featuring a light-skinned Caucasian woman – was the industry standard for calibrating skin tones in photography and television. Film emulsions, digital sensors, and TV cameras were designed with Caucasian skin tones as the default "norm," resulting in poor reproduction of darker skin tones.

The Pain Treatment Disparity (Washington): A 2016 study in PNAS found that medical students and residents held false beliefs about biological differences between Black and white patients – including beliefs that Black people have thicker skin, less sensitive nerve endings, and higher pain tolerance. These beliefs, traceable to 19th-century race science developed through experimentation on enslaved people, predicted racial disparities in pain treatment.

[A-09] ARGUMENT 9: THE "CRIMINALITY PREDICTION" RESEARCH AGENDA IS PSEUDOSCIENCE

■ THE CORE CLAIM

Research claiming to predict criminality from facial features is based on unsound premises, uses biased data, and creates dangerous feedback loops that justify the repression of marginalized populations.

■ EXAMPLES FROM READINGS

Harrisburg University Study (Coalition for Critical Technology): Researchers claimed to "predict if someone is a criminal based solely on a picture of their face" with "80 percent accuracy and with no racial bias." The Coalition for Critical Technology responded: "there is no way to develop a system that can predict or identify 'criminality' that is not racially biased – because the category of 'criminality' itself is racially biased."

No Such Pattern Exists (Coalition for Critical Technology): "No such pattern exists for facial features and criminality, because having a face that looks a certain way does not cause an individual to commit a crime – there simply is no 'physical features to criminality' function in nature."

Dangerous Feedback Loops (Coalition for Critical Technology): Because "criminality" operates as a proxy for race due to racially discriminatory policing, research of this nature creates dangerous feedback loops. Policing based on algorithmic recommendations generates more data fed back into the system, reproducing biased results.

The Drapetomania Precedent (Metzl): In 1851, Louisiana physician Samuel Cartwright proposed a psychiatric diagnosis called "drapetomania" – a supposed mental illness that caused enslaved people to flee captivity. The "treatment" was whipping. The criminality prediction research is the direct descendant of this tradition – the same logic, applied through new technical mechanisms.

[A-10] ARGUMENT 10: AI'S HARMS FALL DISPROPORTIONATELY ON THE MOST VULNERABLE

■ THE CORE CLAIM

Marginalized communities – the poor, racial minorities, Indigenous peoples, women, and disabled people – bear the brunt of harmful AI deployments, while the benefits accrue to the wealthy and powerful.

■ EXAMPLES FROM READINGS

The Poor (Birhane): "The harms of digitization and 'technological solutions' affect individuals and communities that are already at the margins of society." Utilitarian AI ethics focus on "the greatest good for the greatest number," which by definition means solutions that centre minorities are never sought.

Indigenous Peoples (Dawson): Israeli surveillance technology deployed at the U.S.-Mexico border explicitly targets low-income communities, migrant groups, and indigenous peoples. Israel casts a "long shadow over migrant and refugee trails that are traveled by mostly low-income and indigenous peoples."

People with Disabilities (AI Litigation Report): In Arkansas, an algorithmic system allocating home health care to Medicaid patients failed to accurately understand the care needs of patients with cerebral palsy or diabetes. In Idaho, a secret algorithm cut Medicaid benefits for people with disabilities without explanation or appeal.

Transgender People (Benjamin): Appolition was created by Dr. Kortney Ziegler, a Black trans tech developer. The carceral system disproportionately targets and incarcerates trans people, especially Black trans women.

Prisoners (Washington): Under dermatologist Albert Kligman at Holmesburg Prison in Philadelphia, massive pharmaceutical and cosmetic testing was conducted on prisoners – overwhelmingly Black men. Companies including Johnson & Johnson, Dow Chemical, and the US Army tested products including dioxin (Agent Orange), radioactive isotopes, mind-altering drugs, and experimental skin treatments. Kligman described his first visit as seeing "acres of skin."

[A-11] ARGUMENT 11: PREDICTIVE POLICING DOES NOT REDUCE CRIME — IT INCREASES ARRESTS AND SURVEILLANCE

■ THE CORE CLAIM

Predictive policing programs have not been shown to reduce gun violence or crime. Instead, they increase police contact with flagged individuals, generate more arrests, and expand surveillance without delivering public safety benefits.

■ EXAMPLES FROM READINGS

Chicago SSL Pilot (RAND study): The SSL pilot did not reduce gun violence. Individuals on the SSL were 2.88 times more likely to be arrested for a shooting – not because of increased police contact, but because police used the list as a suspect checklist after shootings occurred. The model identified less than 1% of homicide victims (3 out of 405). Even "high-risk" individuals had only a 0.7% homicide rate over 12 months.

Poor Implementation (RAND study): In over two-thirds (68.8%) of presentations observed, there was no mention of the SSL. Prevention strategies were vague – mainly "increased contact" without clear guidance. One commander said: "We didn't know what to do with the list – so we just made more stops."

No Reduction in Gun Violence (RAND study): Out of 405 homicides in Chicago during the study period, only 3 victims were on the SSL – less than 1%. The SSL did not lower citywide murder rates.

Confirmation Bias (RAND study): The RAND study found that the SSL had a direct effect on increasing arrests for shootings that did not work through police contact. Police used the SSL as a suspect lead after shootings occurred, creating a self-fulfilling prophecy.

[A-12] ARGUMENT 12: THE "TECH SOLUTIONIST" NARRATIVE OBSCURES STRUCTURAL CHANGE

■ THE CORE CLAIM

The belief that technology can solve social problems (tech solutionism) distracts from the structural changes needed to address inequality. "Fixing" algorithms leaves the underlying unjust systems intact.

■ EXAMPLES FROM READINGS

Algorithmic Laundering (Obermeyer et al.): The health algorithm laundered existing structural inequalities – making them appear to be neutral technical outputs rather than the products of historical racism. The algorithm didn't say "this patient is Black, give them less care." It said "this patient has lower predicted costs, give them lower priority."

The Myth of Neutrality (Benjamin): "Technology is not neutral. It is always designed within social contexts that encode existing power relations, and in the American context, that means technology encodes anti-Blackness, racial capitalism, and carceral logic."

Reform vs. Abolition (Friedman): "Liberal reform seeks to revise within the carceral rather than imagine a world without it. Rather than die a swift death or even slowly, the carceral state evolves when faced with a direct challenge and further entrenches within our social institutions." Reforming the carceral state is "where the racial contract goes to receive diversity and inclusion training."

The Dialectics of Discipline (Friedman): Felber's "dialectics of discipline" describes how the carceral state morphed alongside the Black Freedom Movement, refining its technologies of surveillance and control when met with a coordinated attack. In times of distress, the carceral state responded with liberal reform – interpreting legal victories as opportunities to develop new carceral technologies.

The Double Bind of History Work (Guntarik, "Gathering"): The FIG project used gamified incentives (free coffee, treasure hunts) to encourage participation. Guntarik acknowledges: "In no way did I wish to dwarf these histories through the playing of a game. And yet this blurring of the lines between play and provocation and between people's histories and painful memories can have limitations. This is the double bind of history work."

[A-13] ARGUMENT 13: SURVEILLANCE CAPITALISM THREATENS HUMAN AUTONOMY AND DEMOCRACY

■ THE CORE CLAIM

Surveillance capitalism unilaterally claims human experience as free raw material for profit, predicting and shaping behavior at scale. This "instrumentarian power" threatens democracy, autonomy, and the right to a future tense.

■ EXAMPLES FROM READINGS

Definition (Zuboff): "Surveillance capitalism unilaterally claims human experience as free raw material for translation into behavioral data. . . . With this reorientation from knowledge to power, it is no longer enough to automate information flows about us; the goal now is to automate us."

The Aware Home Lost Vision (Zuboff): In 2000, the Aware Home project envisioned a "human-home symbiosis" where data would empower individuals and remain under their control. By 2018, this vision was "gone with the wind." Today's smart-home devices extract and monetize personal data with oppressive terms of service.

Instrumentarian Power (Zuboff): "Instrumentarian power knows and shapes human behavior toward others' ends. Instead of armaments and armies, it works its will through the automated medium of an increasingly ubiquitous computational architecture of 'smart' networked devices, things, and spaces."

The Right to the Future Tense (Zuboff): Surveillance capitalism threatens "the elemental right to the future tense, which accounts for the individual's ability to imagine, intend, promise, and construct a future. It is an essential condition of free will and, more poignantly, of the inner resources from which we draw the will to will."

Google as Pioneer (Zuboff): "Google invented and perfected surveillance capitalism in much the same way that a century ago General Motors invented and perfected managerial capitalism."

[A-14] ARGUMENT 14: AI IS A FORM OF DIGITAL COLONIALISM

■ THE CORE CLAIM

U.S. tech monopolies exercise control over the Global South through software, hardware, and network connectivity – a twenty-first-century form of colonization that extracts data and wealth while leaving dependent economies.

■ EXAMPLES FROM READINGS

Definition (Kwet): "In an insidious new phenomenon, digital colonialism, casts a shadow on the Global South. This structural form of domination is exercised through the centralised ownership and control of the three core pillars of the digital ecosystem: software, hardware, and network connectivity."

Nigeria's Software Imports (Birhane): "Nigeria, one of the more technically developed countries in Africa, imports 90% of all software used in the country. The local production of software is reduced to add-ons or extensions creation for mainstream packaged software."

Algorithmic Colonialism (Birhane): "Political, economic, and ideological domination in the age of AI takes the form of 'technological innovation,' 'state-of-the-art algorithms,' and 'AI solutions' to social problems. Algorithmic colonialism, driven by profit maximization at any cost, assumes that the human soul, behaviour, and action is raw material free for the taking."

Free Basics as Gatekeeping (Kwet): "Free Basics not only has Facebook playing Internet gatekeeper of the poor, it also violates net neutrality laws." Facebook controls what

internet content poor people can access.

Data Extraction as Human Resource Mining (Birhane): "Knowledge, authority, and power to sort, categorize, and order human activity rests with the technologist, for which we are merely data producing 'human natural resources.'"

[A-15] ARGUMENT 15: RISK ASSESSMENT IN SENTENCING IS UNCONSTITUTIONAL AND DISCRIMINATORY

■ THE CORE CLAIM

Algorithmic risk assessment tools used in sentencing and parole explicitly use demographic and socioeconomic variables (gender, age, employment, education) that correlate with race and class, violating equal protection principles.

■ EXAMPLES FROM READINGS

Gender Discrimination (Starr): EBS tools give all men higher risk scores than women solely based on group averages – even though individual men may not pose higher risk. The Supreme Court in *Craig v. Boren* rejected using statistical differences between young men and women to justify gender-based drinking ages. The same principle applies to sentencing.

Poverty as Aggravating Factor (Starr): EBS tools assign higher risk to unemployed or less-educated defendants, treating poverty as an aggravating factor. In *Bearden v. Georgia*, the Supreme Court forbade revoking probation for failure to pay restitution based on poverty – even if data showed a correlation between poverty and recidivism.

Racial Proxy Variables (Starr): Although race is not directly included, variables like unemployment, low education, and neighborhood crime are highly correlated with race. A young Black man from a high-poverty neighborhood will score higher on risk tools than a white college graduate with the same crime – leading to longer sentences.

Imprecise Individual Predictions (Starr): A model might predict that men aged 20-24 with no high school diploma have a 40% recidivism rate on average. But the 95% prediction interval for an individual could range from 5% to 90% – so the instrument cannot reliably say whether a specific person will reoffend.

Wrong Question Asked (Starr): Risk prediction tools do not answer what judges need to know: "Will two years in prison reduce his future crime more than probation would?" They only predict who is risky, not whether incarceration reduces that risk.

[A-16] ARGUMENT 16: DIVERSITY INITIATIVES DO NOT FIX STRUCTURAL RACISM IN TECH

■ THE CORE CLAIM

Focusing on individual identity and "diversity" without changing the norms and structures of the tech industry offers little more than cosmetic change. The problem is not just who designs

technology, but the logic of extraction and control embedded in the industry.

■ EXAMPLES FROM READINGS

Cosmetic Diversity (Benjamin): "Cosmetic diversity too easily stands in for substantive change, with a focus on feel-good differences like food, language, and dress, not on systemic disadvantages."

The Default Imagined User (Costanza-Chock): "Designers most frequently assume that the unmarked user has access to a number of very powerful privileges, such as U.S. citizenship, English language proficiency, access to broadband internet, a smartphone, no disabilities, and so on."

Diversifying the Workforce Is Not Enough (Costanza-Chock): "Diversifying the software workforce, unfortunately, will not automatically produce a more diverse default imagined user. Unless the gender identity, sexual orientation, race/ethnicity, age, nationality, language, immigration status, and other aspects of end user identity are specified in advance, the imagined user for whom technology design teams develop products tends to default to the dominant social group."

From Equity to Accountability (Costanza-Chock): "Ultimately, we have moved from an argument for equity (we need diverse designers, and diverse users) to an argument for accountability (those most affected by the outcomes should lead and own digital design processes and products)."

Single-Axis Analysis (Costanza-Chock): "Universalist design principles and practices, and even evaluations of fairness or equity in design that are single-axis, erase certain groups of people, specifically those who are intersectionally disadvantaged or multiply-burdened under white supremacist heteropatriarchy, capitalism, and settler colonialism."

RESISTANCE: LIBERATORY IMAGINARIES

[R-01] RESISTANCE ARGUMENT 1: BANNING AND RESTRICTING HARMFUL TECHNOLOGIES THROUGH LEGISLATION

■ THE CORE CLAIM

Communities and advocates have successfully pushed for outright bans on dangerous surveillance technologies, particularly facial recognition, and for laws requiring democratic oversight of police technology purchases.

■ EXAMPLES FROM READINGS

San Francisco Facial Recognition Ban (Cagle & Hirsch): In 2019, San Francisco passed the nation's first-ever ban on municipal facial recognition, following years of grassroots advocacy led by the ACLU and a diverse alliance. The law also forced every city department to report and receive approval for surveillance technology they used, preventing secret stockpiling without public consent.

Boston and Portland Bans (Amnesty International): Boston became the second largest city to ban facial recognition in June 2020. Portland, Oregon, instated the widest ban to date in September 2020, prohibiting police, city departments, and public-facing businesses from using the technology.

New York State School Ban (Amnesty International): In December 2020, New York State banned facial recognition in schools.

San Francisco Surveillance Ordinance (Cagle & Hirsch): The ordinance forced every city department to report and receive approval for surveillance technology, meaning the government could no longer secretly stockpile tech without public consent. In January 2022, when Mayor Breed proposed gutting the law, a citywide poll showed 60% of San Franciscans opposed giving SFPD access to private cameras for live surveillance. Breed withdrew the proposal.

San Francisco Poll Results (Cagle & Hirsch): The poll showed San Franciscans overwhelmingly prefer alternative approaches that do not rely on surveillance or police, such as more resources for drug and mental health programs, more health care providers and social workers, and more streetlights.

[R-02] RESISTANCE ARGUMENT 2: GRASSROOTS ORGANIZING AND COMMUNITY-BASED ADVOCACY

■ THE CORE CLAIM

Local communities, tenant associations, and grassroots organizations have successfully resisted the installation of surveillance technologies in their neighborhoods and homes through collective action.

■ EXAMPLES FROM READINGS

Atlantic Plaza Towers (Amnesty International): Residents of a Black-majority complex in Brownsville, Brooklyn successfully resisted attempts by Nelson Management Group to install facial recognition cameras. Floor captains Tranae Moran and Fabian Rogers led tenants to challenge the installation. When the landlord retaliated by sending tenants surveillance print-outs with their apartment numbers and time stamps, the community continued organizing and won.

Stop LAPD Spying Coalition (Benjamin): A community-based organization engaged in participatory action research to understand community members' experiences of intensifying surveillance. They distinguished their efforts from carceral reforms like police body cameras, which one presenter called "an empty reform to extend the stalker state."

Carceral Tech Resistance Network (Friedman): CTRN is a coalition organizing against the design, experimentation, and deployment of carceral technologies (CCTV, drones, electronic monitoring, facial recognition) by building community archives, community knowledge, community defense, and community power. The network organizes in communities that have a long history of fighting these practices and acquired knowledge about how to fight and build safety.

CTRN Knowledge Sharing (Friedman): The network recognized that technologies rolled out at a local scale have afterlives – they travel to other contexts where communities may have less familiarity with them. There was a need to knowledge-share and foster mentorship between community organizations.

Tech Parks Arizona Resistance Context (Dawson): While not a resistance example per se, the article documents that low-income, migrant, and indigenous communities are explicitly targeted by border surveillance technology – and these same communities have organized against it.

[R-03] RESISTANCE ARGUMENT 3: LITIGATION AND LEGAL CHALLENGES TO ALGORITHMIC SYSTEMS

■ THE CORE CLAIM

Lawyers, public defenders, and civil rights organizations have successfully challenged algorithmic systems in court using procedural due process claims, challenges to scientific validity, and constitutional arguments.

■ EXAMPLES FROM READINGS

Houston Teacher Evaluation Case (AI Litigation Report): The Houston Federation of Teachers sued the school district over a proprietary algorithm used for teacher evaluations. Teachers won the right to go to trial on a constitutional procedural due process claim focusing on the district's failure to give teachers meaningful access to the algorithmic system.

D.C. Juvenile Risk Assessment (AI Litigation Report): A public defender successfully raised a Daubert challenge to a violence risk assessment tool, obtaining a ruling that the risk assessment was not sufficiently validated to be admissible. The tool was based on only two outdated, non-peer-reviewed studies.

Idaho Medicaid Case (AI Litigation Report): Plaintiffs argued that algorithmic benefit cuts violated the 14th Amendment's due process clause because recipients weren't given meaningful notice. The case led to co-designing a new Medicaid assessment tool with the state agency.

Arkansas Medicaid Case (AI Litigation Report): Lawyers and experts uncovered software bugs in the Medicaid algorithm that miscalculated patient needs, leading to a court victory. The flaws were only discovered during litigation when the system's code and technical documentation were carefully examined.

K.W. v. Armstrong (AI Litigation Report): The ACLU challenged a secret algorithm used to cut Medicaid benefits in Idaho. The case demonstrated the importance of expert witnesses – technical and social science experts were critical to analyzing algorithms and explaining flaws to judges.

Role of Experts (AI Litigation Report): Experts were crucial both within litigation and as part of building broader consensus that algorithmic systems were inherently flawed. Successful teams included lawyers, data scientists, social scientists, and community advocates working together.

[R-04] RESISTANCE ARGUMENT 4: TRANSPARENCY AND AUDIT DEMANDS

■ THE CORE CLAIM

Activists and researchers demand that algorithms be opened to public scrutiny, that vendors cannot hide behind trade secrecy when public rights are at stake, and that independent audits be conducted before and during deployment.

■ EXAMPLES FROM READINGS

Algorithmic Justice League Safe Face Pledge (Benjamin): A public pledge calling on organizations to mitigate abuse of facial recognition analysis technology. Prohibitions include lethal use of the technology, lawless police use, and require transparency in any government use. As of the book's writing, none of the major tech companies had been willing to sign.

Dataset Nutrition Label Project (Benjamin): A project riffing off food nutrition labels, measuring and presenting key ingredients of a dataset (where, when, and by whom data were produced) to create standard quality measures as a prerequisite to developing more inclusive datasets.

Auditing Algorithms Initiative (Benjamin): A research community developing practices for auditing algorithmic decision-making. Key questions include: What are unintended consequences of designing systems at scale on existing social patterns? When should AI prioritize individuals over society and vice versa? When is introducing an AI system the right answer – and when is it not?

FBI Transparency Demands (Garvie et al.): The report urged that the FBI be transparent about its use of face recognition, and that all face recognition use should be subject to public reporting and internal audits. Citizens are paying for these systems and have a right to know how they are being used.

Trade Secrecy Challenge (AI Litigation Report): Lawyers recommend routinely filing public records requests and demanding expert access to proprietary systems during discovery. Procedural due process arguments were particularly adept at dismantling claims that algorithmic decision systems are proprietary trade secrets, especially when used for public benefits determinations.

[R-05] RESISTANCE ARGUMENT 5: WORKER AND EMPLOYEE ORGANIZING WITHIN TECH COMPANIES

■ THE CORE CLAIM

Tech workers have organized protests and refused to be complicit in the use of their labor for military, surveillance, and deportation purposes.

■ EXAMPLES FROM READINGS

Google Employee Protests (Benjamin): Thousands of Google employees condemned the company's collaboration on a Pentagon program using AI to make drone strikes more effective. Workers publicly opposed their employer's military contracts.

Microsoft Employee Protests (Benjamin): Microsoft employees opposed the company's contract with ICE (Immigration and Customs Enforcement), stating: "As the people who build the technologies that Microsoft profits from, we refuse to be complicit."

Selective Outrage Critique (Benjamin): Benjamin cautions that there is selective outrage – where is comparable fury over surveillance that has torn Black families apart long before Trump's administration? This is both a resistance example and a critique of its limits.

[R-06] RESISTANCE ARGUMENT 6: DESIGN JUSTICE AND COMMUNITY-LED DESIGN

■ THE CORE CLAIM

Design justice is a framework and movement that centers the voices of those most affected by design outcomes, prioritizes community impact over designer intentions, and sees designers as facilitators rather than experts.

■ EXAMPLES FROM READINGS

Design Justice Principles (Costanza-Chock): "We center the voices of those who are directly impacted by the outcomes of the design process. We prioritize design's impact on the community over the intentions of the designer. We see the role of the designer as a facilitator rather than an expert. We believe that everyone is an expert based on their own lived experience."

"Nothing About Us Without Us" (Costanza-Chock): Design justice draws from the disability justice movement. Involving members of the community most directly affected is crucial both because it's ethical and because their tacit and experiential knowledge produces ideas that a non-member would be very unlikely to come up with.

Before Seeking New Solutions (Costanza-Chock): "Before seeking new design solutions, we look for what is already working at the community level. We honor and uplift traditional, indigenous, and local knowledge and practices."

Advocacy-Based Algorithms (AI Litigation Report): The report called for exploring what an "advocacy-based algorithm" might look like that is oriented around the needs of individuals or communities impacted by these systems. In Idaho, plaintiffs co-designed a new Medicaid assessment tool with the state agency.

Design Justice as Social Movement (Costanza-Chock): "Design justice is also a growing social movement that aims to ensure a more equitable distribution of design's benefits and burdens; fair and meaningful participation in design decisions; and recognition of community-based design traditions, knowledge, and practices."

[R-07] RESISTANCE ARGUMENT 7: ABOLITIONIST TECHNOLOGY AND MUTUAL AID TOOLS

■ THE CORE CLAIM

Communities are building and using technology not to extend the carceral state but to actually free people, redirect resources, and create alternatives to policing and imprisonment.

■ EXAMPLES FROM READINGS

Appolition Bail Crowdfunding App (Benjamin): Created by Dr. Kortney Ziegler (Black trans tech developer) and Tiffany Mikell. The mobile app converts users' daily spare change into bail money to free Black people from pretrial detention. Launched November 2017, it garnered 8,000 enrollments, raised \$230,000, freeing over 65 people. Money is returned to depositors after cases conclude, so donations are continuously recycled. Many White users see it as a form of reparation. Partners with the National Bail Out movement.

Appolition vs. Promise (Benjamin): Benjamin contrasts Appolition (abolitionist tool that directs resources to getting people literally free) with Promise (Jay-Z's startup that creates a "digital cell" and collaborates with law enforcement). Appolition is "a technology with an emancipatory ethos, a tool of solidarity."

National Bail Out Network (Benjamin): "Everyday an average of 700,000 people are condemned to local jails and separated from their families. A majority of them are there simply because

they cannot afford to pay bail."

Turkopticon (Benjamin): An activist tool developed by Lilly Irani and M. Six Silberman to help crowdworkers (Amazon Mechanical Turk workers) watch out for each other. Illustrates solidaristic design, though Benjamin notes it also raises questions about who gets credited for innovation.

BYP100 (Benjamin): BYP100 extends the critique of abolitionist organizations like Critical Resistance, which describes "the overlapping interests of government and industry that use surveillance, policing, and imprisonment as solutions to what are, in actuality, economic, social, and political 'problems'" under the description prison-industrial complex.

[R-08] RESISTANCE ARGUMENT 8: DATA FOR BLACK LIVES AND BLACK DATA JUSTICE

■ THE CORE CLAIM

Black data scientists, organizers, and scholars are building collective power to challenge how data and algorithms are used against Black communities, drawing on a long tradition of Black data activism from Du Bois to Ida B. Wells.

■ EXAMPLES FROM READINGS

Data for Black Lives (D4BL) (Benjamin): A collective of organizers, scholars, and data scientists. Yeshimabeit Milner wrote an open letter to Mark Zuckerberg calling for a Public Data Trust, a Data Code of Ethics, and hiring Black data scientists. The collective emphasizes that data justice issues today are predicated on a longer history of systematic injustice.

Historical Forebears (Benjamin): D4BL highlights W.E.B. Du Bois (data visualizations of Black life at the 1900 Paris Exposition) and Ida B. Wells-Barnett (The Red Record documenting lynching statistics) as historical figures who used data for liberation.

Black in AI (Benjamin): Timnit Gebru, computer scientist and founder of Black in AI, urges companies to give more information not just to users but also to researchers – including recommended usage, what the pitfalls are, and how biased the data set is.

Algorithmic Justice League (Benjamin): The organization works to highlight bias in AI and advocate for accountability.

[R-09] RESISTANCE ARGUMENT 9: SUBVERSIVE ART, FASHION, AND TACTICAL RESISTANCE

■ THE CORE CLAIM

Artists and activists use fashion, makeup, and creative practices to subvert surveillance technologies – making themselves invisible to facial recognition or turning surveillance tools back on power.

■ EXAMPLES FROM READINGS

CV Dazzle Project (Browne): Adam Harvey's CV Dazzle project suggests applying makeup that contrasts with your skin tone in unusual tones and directions – light colors on dark skin, dark colors on light skin – to decrease the possibilities of facial recognition detection.

Jillian Mayer's Makeup Tutorial (Browne): Mayer demonstrates how to use black lipstick, clear tape, scissors, white cream, glitter, and black eyeliner to distort one's face to make it indiscernible to cameras. She says the most important thing "is to really break up your face" and that facial recognition "isn't about blending in" but "sticking out, yet remaining undetected."

Hyphen-Labs (Benjamin): An international team of women of color working at the intersection of technology, art, science, and futurism. They created earrings for recording police altercations and visors and clothing that prevent facial recognition. This recasts what counts as technoscience and who counts as an innovator.

White-Collar Crime Risk Zones (Benjamin): A parody project that flips predictive policing techniques. It creates a heat map flagging city blocks where financial crimes are likely to occur, includes an app alerting users when they enter high-risk areas to encourage "citizen policing," and uses facial recognition trained on 7,000 corporate executive photos from LinkedIn. The "averaged" face of a criminal is White and male. This subverts anti-Black logics in crime prevention tech.

Dark Sousveillance (Browne): Browne coins "dark sousveillance" to describe tactics employed to render oneself out of sight and strategies used in the flight to freedom from slavery – situating contemporary surveillance resistance within the long history of Black escape and resistance.

[R-10] RESISTANCE ARGUMENT 10: THE RIGHT TO SILENCE, NON-KNOWLEDGE, AND REFUSAL

■ THE CORE CLAIM

Resistance includes the refusal to make knowledge transparent and accessible to oppressive systems. Communities keep their survival strategies secret, and Indigenous knowledge systems insist on the right to silence and sacred knowledge.

■ EXAMPLES FROM READINGS

Digital Defense Playbook (Benjamin): Tawana Petty, Detroit-based digital justice activist, said: "Let me be real, y'all gettin the Digital Defense Playbook, but we didn't tell you all their strategies and we never will, because we want our community members to continue to survive and to thrive." Oppressed people do not need "allies" but "co-liberation" – an aspirational relationship that emphasizes linked fate.

Omission of Reference List (Guntarik, "Rematriation"): Guntarik's deliberate omission of a reference list is a political and epistemological choice – a refusal of citational politics as extractive practice, the demand that knowledge be traceable, auditable, reducible to sources that can be checked, owned, cited.

Silence as Method (Guntarik, "Gathering"): N'arweet (Elder) tells her: "Just listen and don't ask questions. There is something about non-speech and allowing the silence to reign that proffers something more." Drawing on Agamben: "maintaining oneself in the right relationship to ignorance, allowing absence of knowledge to guide and accompany our gestures."

Non-Knowledge as Zone (Guntarik, "Gathering"): "Articulating a zone of nonknowledge does not mean simply not knowing... It means, on the contrary, maintaining oneself in the right relationship to ignorance, allowing absence of knowledge to guide and accompany our gestures, letting a stubborn silence clearly respond for our words."

Sacred Knowledge (Guntarik, "Rematriation"): "Knowledge can be silent and sacred." "If knowledge looks strange to you, can't be contained or reduced, that's because Indigenous knowledge is always moving."

[R-11] RESISTANCE ARGUMENT 11: FREE SOFTWARE, DECENTRALIZATION, AND TECHNOLOGICAL SOVEREIGNTY

■ THE CORE CLAIM

The free software movement offers an alternative to proprietary, extractive technology by ensuring four essential freedoms: to run, study, modify, and share software. Decentralized technologies can break the monopoly of corporate and state surveillance.

■ EXAMPLES FROM READINGS

Four Essential Freedoms (Kwet): Free Software ensures the freedom to run the program as you wish; the freedom to study how the program works and change it; the freedom to redistribute verbatim copies; and the freedom to distribute copies of your modified versions to others. Desmond Tutu: "There are those who will take the fruits of the human mind and lock them up, dishing them out to us in meted amounts for a fee that locks most of our people out."

FreedomBox Project (Kwet): In February 2010, Eben Moglen and colleagues launched the FreedomBox project in reaction to cloud centralization. The project runs a secure, personal server that protects privacy and provides infrastructure for communities to network their online activities without centralized intermediaries.

Seize the Means of Communication (Kwet): Edward Snowden: "We're very rapidly approaching a point in human history where we will need to seize the means of our communication."

People's Tech for People's Power (Kwet): Kwet calls for a global movement against digital colonialism and for technology built for freedom. "New technologies are often viewed as something that 'comes out' on the market rather than products designed with particular values and power relations embedded in them. From an engineering perspective, it does not have to be this way: digital technology can be owned and controlled by the popular classes."

Free Software, Free Hardware, Free Spectrum (Kwet): True digital sovereignty requires Free Software, Free Hardware, and Free Spectrum (neutral internet).

[R-12] RESISTANCE ARGUMENT 12: WALKING, PLACE-BASED KNOWLEDGE, AND RECLAIMING SPACE

■ THE CORE CLAIM

Walking is a political act and a method of resistance. Indigenous communities use walking tours, mobile apps, and place-based storytelling to reclaim history, counter colonial narratives, and build alternative relationships to land and technology.

■ EXAMPLES FROM READINGS

Walking as Political Act (Guntarik, "Gathering"): "Walking is a political act" and "a way of thinking about time and place, and how we stand across our differences." Guntarik writes "from and out of exile" to trace "the kinaesthetic lines that connect us to different places."

The FIG Project (Guntarik, "Gathering"): A digital walking tour project at the Old Fig Tree adjacent to the Old Melbourne Gaol. Uses mobile app technology (AR, GPS, locative media) to generate place-based renderings of historical material. Users could upload images, stories, audio recordings in response to the site.

Talking Country Project (Guntarik & Morris, "Song and Survival"): Located in Kalimna Park (Yorta Yorta language: "Kalimna" means beautiful) – Dja Dja Wurrung/Djaara traditional Country. Led by young Indigenous leaders who wanted to "bring the digital world into dialogue with place-politics." The app automatically triggers listening experiences so eyes are not fixed on phones. Goal: "Feel, walk, see, sense and smell Country."

The Burke and Wills Monument (Guntarik & Morris, "Song and Survival"): The cultural walk deliberately ends at a Burke and Wills statue – a "major monument to colonialism." Uncle Rick Nelson (Djaara elder) greets participants: "Ahhhh, I think you're beginning to understand now why you're here." The walk asks: what if we started with First Nations history? "Where might we be in the world in terms of progress, if we had done this from the start?"

Sitting with Difficult Feelings (Guntarik & Morris, "Song and Survival"): The reflection after the walk allowed people to sit with grief, guilt, denial, anger, arrogance of power, complacency, indifference, insensitivity. "Part of this 'sitting with' was about allowing ourselves to not always rush forward to try to fix problems." The walk asks: "Where am I in all of this?"

[R-13] RESISTANCE ARGUMENT 13: REMATRIATION AND NON-EXTRACTIVE RELATIONSHIPS TO KNOWLEDGE

■ THE CORE CLAIM

Rematriation – returning the earth to Mother Nature to heal and regenerate – is a framework for non-extractive relationships to land, knowledge, and technology. Unlike repatriation (returning objects), rematriation focuses on keeping "the living archive living."

■ EXAMPLES FROM READINGS

Definition of Rematriation (Guntarik, "Rematriation"): "Rematriation means returning the earth to Mother Nature to heal and regenerate." Core assertion: "We have not lost. We do not need things returned to us as they were never taken from us. We were always here and the voices of our ancestors are our original source."

Non-Extractive Language (Guntarik, "Rematriation"): Guntarik seeks "a non-extractive language built on love, impulse and free will." Language is "exploratory and experimental (a form of improvisation)."

The Archive as Living Being (Guntarik, "Gathering"): "The archive is holistic and feeds my soul. It is nurturing and giving and caring. It keeps me safe and whole and honest like nothing else. I cradle this archive in my arms like a baby, feed it so that it may grow and become a Living Being full of promise and humanity. It is not an extractive relationship."

Custodianship Not Ownership (Guntarik & Morris, "Song and Survival"): Elders speak of being "custodians of Country" – not owners. "If we think of ourselves as carers and custodians of Country, we might learn to see the land from Indigenous ways of knowing, being and practising Country." "Country will always be sovereign... laws in space, laws in time, never ceded."

Grounded Normativity (Guntarik & Morris, "Song and Survival"): Drawing on Glen Sean Coulthard: "the modalities of Indigenous land-connected practices and longstanding experiential knowledge that inform and structure our ethical engagements with the world and our relationships with human and nonhuman others over time."

[R-14] RESISTANCE ARGUMENT 14: LANGUAGE RECLAMATION THROUGH DIGITAL TOOLS

■ THE CORE CLAIM

Digital technologies can be repurposed for cultural survival and language reclamation. The question is not whether to use technology but whose values and structures it serves.

■ EXAMPLES FROM READINGS

Learning First Language via WhatsApp (Guntarik, "Rematriation"): Guntarik learns her First language via WhatsApp voice notes from her Aunt. She uses digital platforms (YouTube, WhatsApp, Vimeo) for cultural transmission. "Going back is a metaphor for restoring what was lost."

Non-Extractive Technology Use (Guntarik, "Rematriation"): Technology is not inherently colonial. It becomes colonial when structured by extractive logics. Repurposed toward rematriation, it can carry song, dance, ceremony, memory.

Technology in the Background (Guntarik & Morris, "Song and Survival"): The Talking Country app automatically triggers listening experiences so participants' eyes are not fixed on phones. The key principle: technology should not take away from what is important. "We asked people not to have any judgment at all and just to listen to the stories."

Digital Terra Nullius Warning (Guntarik & Morris, "Song and Survival"): "For us, no difference exists between the physical and digital terra nullius. The material, digital and

sacred can all potentially be stolen, silenced and erased." Caution against "unseeing practices that devalue 'space', 'place' and 'content' in the digital economy."

[R-15] RESISTANCE ARGUMENT 15: THE PRISON ABOLITIONIST IMAGINATION

■ THE CORE CLAIM

Imagination is a political terrain. Prison abolition requires not just dismantling the carceral state but dreaming and building alternative worlds. Imagination becomes real through action.

■ EXAMPLES FROM READINGS

Imagination as Political Terrain (Wang): Prisons don't just hold bodies – they hold imaginations captive. Drawing on Sylvia Wynter: at the same moment indigenous people were confined to reservations, "our imaginations are also confined. All of us." The prison shapes how we imagine "work, our relationships, the future, family, everything."

Imagination as Excess (Wang): Imagination is also "excess" – "that which could never be contained by the prison."

Dialectic of Dreaming and Action (Wang): Michael Hardt: imagination is "constitutive" – it "becomes real through its intensification and articulation." Assata Shakur: "Dreams and reality are opposites. Action synthesizes them." Prophetic dreams must be acted upon to "give them flesh."

The Stars as Freedom (Wang): Attica prisoners (1971): "no matter what happened later on, they couldn't take this night away from us." A prisoner named Owl: "I haven't seen the stars in twenty-two years." Chilean political prisoners under Pinochet: observing stars produced "great freedom" – the military banned astronomy lessons fearing escape by constellations.

Closing Question (Wang): Robin D.G. Kelley asks: "What shall we build on the ashes of a nightmare?"

[R-16] RESISTANCE ARGUMENT 16: COLLECTIVE PROTEST AND REFUSAL TO DANCE THE DIALECTIC

■ THE CORE CLAIM

Mass protests following police murders are a direct confrontation against the racial capitalist system. Unlike liberal reform, which the carceral state absorbs and uses to evolve, abolition refuses to "dance the dialectic" of reform and expansion.

■ EXAMPLES FROM READINGS

Ferguson Uprising (Wang): After police crushed the memorial to Mike Brown, "an uprising bloomed out of the ground where the memorial flowers had been crushed."

George Floyd Protests (Friedman): "We are witnessing collective protest led by Black communities wielded to discipline the carceral state at its root. The protests following the murders of Breonna Taylor, Ahmaud Arbery, and George Floyd are a direct confrontation against the U.S. racial capitalist system, calling it out as the vile soul of the rotten carceral state."

Refusal to Dance the Dialectic (Friedman): "Abolition recognizes the dialectics of carceral technologies and liberal reform and responds not only with disciplining and dismantling the old, but with dreaming, imagining, and creating what Ruth Wilson Gilmore refers to as 'vital systems' in the present."

Nation of Islam Resistance (Friedman): "Not only did the Nation of Islam refuse the carceral state's deadly promises for partial inclusion, but its members organized and risked their lives from within its darkest corners, revolutionizing solitary confinement cells and rigged courtrooms as sites of Black revolutionary challenges to the root of the carceral state."

[R-17] RESISTANCE ARGUMENT 17: SONGKEEPING, FIRE, AND ANCESTRAL TRANSMISSION

■ THE CORE CLAIM

Resistance is not only about opposing harmful systems but about maintaining and transmitting life-sustaining cultural practices – song, story, fire, ceremony – that have survived centuries of colonialism.

■ EXAMPLES FROM READINGS

Songkeeping as Survival (Guntarik & Morris, "Song and Survival"): Neil Morris (Djaara): "I listen to stand awake. I listen to stand alive, I listen to be always with communal fire, lit by ancestors. We need this to survive. Ancestors' songs will always speak now. They tell us what they did – walking mother country, in good ways."

The Communal Fire (Guntarik & Morris, "Song and Survival"): "The communal fire is a source of light and heat on cold dark nights and in dark times... We tell stories around the fire. The fire expresses a promise, reignites memory, signals a way to be together. Our words are contracts. We honour the words shared as the warmth of the fire brightens our face."

Imaginary Plentitude (Guntarik & Morris, "Song and Survival"): Drawing on Stuart Hall: "Such texts restore an imaginary fullness or plentitude, to set against the broken rubric of our past. They are resources of resistance and identity, with which to confront the fragmented and pathological ways in which that experience has been reconstructed within the dominant regimes."

The Will to Return (Guntarik & Morris, "Song and Survival"): "We can no longer return to the original precolonial state (of being Indigenous) or to the mother (the original precolonial homeland). Yet it is the will to return that stirs a desire and a purpose for being, a coming together around the communal fire in ways that build an 'imaginary coherence.'"